

Stakeholder Consultation on the Development of Guidelines to Support the Implementation of the Corporate Sustainability Due Diligence Directive (CSDDD)

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Stakeholder category: Academia

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Question 2 – Adverse human rights impacts: examples

The guidelines should address AI training labor as a documented category of adverse human rights impact currently invisible under the CSDDD. The Omnibus I rollback to 5,000 employees and €1.5bn turnover structurally excludes all AI training labor subcontractors. The lead AI companies, however, meet the threshold. The guidelines should clarify that a lead company's Article 8 in-depth assessment extends to labor conditions throughout its AI training supply chain, regardless of subcontractor size.

Question 12 – Digital tools for identifying adverse impacts

The LaborChain ontology (<https://w3id.org/laborchain/>) and LaborTrail tool (<https://huggingface.co/spaces/sage-lollipop/laborchain>) demonstrate that AI training labor conditions – wages, jurisdiction, psychological harm, unionization suppression, subcontracting depth – are documentable without company self-disclosure, using journalistic and worker testimony sources. This is a proof of concept. The Commission should build on it to develop a mandatory EU equivalent for AI training supply chains.

Question 13 – Difficulties with existing digital tools

Existing due diligence digital tools rely on company self-disclosure or supplier questionnaires. With the rise of GenAI and LLMs, this is structurally inadequate: data annotation subcontractors have no legal obligation to disclose wage conditions, jurisdiction, or worker harm, and no commercial incentive to do so either. LaborChain framework was built specifically to work around this gap using third-party sources, but the Commission may run investigative and research agencies at its behest.

Question 14 – Additional digital tools needed

A mandatory EU-funded tool for documenting labor conditions in AI training supply chains, with disclosure obligations attached to lead companies meeting the CSDDD threshold. It should track: subcontracting depth, wage ratios against jurisdiction minimums, traumatic content exposure, psychological support provision, and unionization suppression. The LaborChain ontology (<https://w3id.org/laborchain/>) provides the data model. The Commission should build the mandatory infrastructure on top of it.

Question 19 – Living income data for self-employed suppliers

No standardised living income data exists for self-employed digital platform workers – data annotators, content moderators, RLHF annotators – in peripheral jurisdictions (Kenya, Philippines, Venezuela), where freelancer classification renders them invisible to existing databases designed for agricultural smallholders. The most cost-effective available source is structured third-party documentation: investigative journalism and worker testimony, systematised into comparable wage records. The LaborChain framework (<https://w3id.org/laborchain/>) demonstrates this is feasible without company cooperation.

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